

**JUSTIFICATION & APPROVAL FOR OTHER THAN FULL AND OPEN COMPETITION
for SIMPLIFIED ACQUISITIONS OVER THE MICROPURCHASE THRESHOLD (See FAR
Part 2) UP TO SAT
(See FAR 13.106-1)**

Date: 3/5/2026

PR Number: _____

1. Nature and/or description of the item/service being procured and its intended use (include the anticipated cost):

The project will consist of removal of mold contaminated materials throughout a 1,200 sqft duplex unit including plywood underlayment, trim, paneling, and ceiling tiles. The areas under the structure where mold has been detected will be treated with chemical abatement processes. The abatement of asbestos will need to occur in conjunction with the mold remediation due to removal of plywood underlayment having linoleum that has tested positive for asbestos. [REDACTED]
[REDACTED]

2. Sole Source Justification rationale (Check one and explain below):

_____ **Only one responsible source.**

☒ **Urgent and compelling circumstances exist.** Include critical delivery or performance dates, and when you became aware of the requirement. Provide a specific statement of the impact on Government operations, financial or otherwise, if the required delivery or performance dates are not met.

_____ **Other** _____

Explain:

The park performed an annual inspection on December 9, 2025 at the concession operated building known as duplex cabin 9 and 10. During the inspection, facility staff identified soft areas along the floor and what visibly appeared to be mold growth throughout the duplex units. The park facility team made the decision to temporarily close the structure in conjunction with the concessioner to have the building properly tested for mold.

An inspection was conducted on January 8, 2026 at the concession operated building known as duplex cabin 9 and 10. The inspector identified mold throughout the building including ceiling, walls, and floors. Due to the severity of the mold and extensive damage to the structure materials, it was recommended to remove and discard both layers of ceiling, wall and trim finishings, cabinetry, plumbing and light fixtures, damaged insulation, floor coverings, and compromised subfloors. The underlayment that would need to be removed was determined to contain asbestos by previous testing reports which would require a company that could provide mold remediation as well as asbestos abatement.

The cabin is unsafe for individuals with compromised immune systems and should not be rented to park visitors until remediation is completed. As a result, the NPS has closed the duplex building. This closure impacts the concessioner's ability to generate income as guaranteed by the concession contract BUFF001-19 and affects visitors with existing reservations for these cabins. The concessioner has reported that during peak periods, all cabins are rented, leaving no alternative accommodation for affected reservations. These cabins are owned by the NPS and assigned to the concessioner who operates under a concession contract. The concessioner has no Leasehold Surrender Interest in any of the facilities identified in the concessions contract. Under the terms of the concession contract the NPS is responsible for the maintenance of the buildings.

A qualified company is available to complete the mold remediation promptly. Accelerating this work will allow the cabins to reopen sooner. After remediation, the NPS will need to perform additional tasks to prepare the cabins for rentals. Each day the cabins remain closed, results in lost revenue opportunities for the concessioner.

3. Market Research. Please explain the results or why one was not performed. State whether any other offers were received or anyone expressed interest:

The park contacted multiple companies within 100 miles of the jobsite with many never returning calls. The companies that returned call were all only certified to complete the mold remediation but did not have required license to perform both remediation/abatement task. The park contacted a contractor that had previously completed asbestos abatement to inquire about ability to perform both remediation/abatement task which the contractor was certified in both. The contractor provided an estimate based off reports supplied by inspectors. The company is SAMs registered and specializes in remediation/abatement projects.

ATTACHMENT 2

JUSTIFICATION AND APPROVAL FOR OTHER THAN FULL AND OPEN COMPETITION for SIMPLIFIED ACQUISITIONS OVER \$3,000 (\$2,000/\$2500 for Construction/Services AND UP TO \$150,000 (See FAR 13.106-1)

PR Number _____

4. If this is a determination for sole source, the contracting officer certifies:

- a. Only one source is available, or urgent and compelling circumstances exist.
- b. The anticipated price will be determined fair and reasonable using the price analysis techniques described in FAR Part 13.106-3(a).

(Signature) JARED JAMES Digitally signed by JARED JAMES
Date: 2026.03.13 10:25:23 -05'00' (Date) _____

Last updated 6/2/2016

Type or Print Name: Jared James

Title: Supervisory Facility Operations Specialist

(Signature) Jarrod W Brown Digitally signed by JARROD
BROWN
Date: 2026.04.28 16:25:10 -05'00' (Date) 4/28/2026

Type or Print Name: Jarrod Brown

Contracting Officer

Last updated 6/2/2016